

		As to that sole basis, the Court SUSTAINS the Demurrer and grants leave to amend the Complaint. Plaintiff is ordered to file an Amended Complaint within 5 business days of the Court hearing.
3	30-2026-01582151 12575 9th Street, L P. vs. Flores	The Court has read and considered Defendants Sarah Angulo and Pedro R. Torres' Motion to Quash Service (ROA 29) and Plaintiff's Opposition (ROA 42). The Court takes Judicial Notice of the Proof of Service of Summons regarding Pedro R. Torres (ROA 16), Proof of Service of Summons regarding Yesseln C. Flores aka Yesselin Torres (ROA 12), Proof of Service of Summons regarding Sarah Angulo (ROA 10), and Proof of Service of Summons regarding Pedro L Torres (ROA 8). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code section 647. Here, registered process server George Craig (Los Angeles #2019267578) personally served Pedro R. Torres and Yesselin Torres on 7/9/2026 at 1:29 PM. Process Server Craig served Sarah Angulo via substitute service of co-occupant Pedro R. Torres on July 10, 2026 at 8:43 AM after documenting at least 2 prior attempts at personal service. The only evidence submitted by the Defendants in support of their motion to quash service is that they were not personally served. The Defendants' self-serving statements alone do not rebut the presumption under Evidence Code section 647. The Court DENIES the Defendants' Motion to Quash Service of Summons. In review of this file, the Court observed that the Defendants, Yesselin C. Flores aka Yesselin Torres and Pedro L. Torres, filed a Motion to Dismiss on 7/27/2026, the same day as the motion to quash service of summons in this matter. The Motion to Dismiss is set for hearing on 8/28/2026. A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. As the Motion to Dismiss is not a proper filing under CCP § 1170(a), the Court is STRIKING the Motion to Dismiss. All Defendants are ordered to file a responsive pleading under CCP § 1170(a) within 5 calendar days. Plaintiff is ordered to serve notice of this Court's ruling.